

2. No person shall be qualified to be so appointed unless he is a member of one or more of the following bodies, namely :—

The Institute of Chartered Accountants in England and Wales;

The Society of Incorporated Accountants and Auditors;

The Society of Accountants in Edinburgh;

The Institute of Accountants and Actuaries in Glasgow;

The Society of Accountants in Aberdeen;

The London Association of Certified Accountants Limited;

The Corporation of Accountants Limited.

3. Any auditor so appointed shall be entitled to require from any officer of the corporation such documents, information and explanations as may be necessary for the performance of his duties.

4. Any auditor so appointed shall include in or annex to any certificate given by him with respect to the accounts audited by him such observations and recommendations (if any) as he thinks necessary or expedient to make with respect to the accounts or any matter arising thereout or in connection therewith.

CHAPTER 29.

An Act to amend subsection (1) of section nineteen of the Education Act, 1921, and for purposes consequential on such amendment.

[18th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) In subsection (1) of section nineteen of the Education Act, 1921, the words from “but a school” to the end of the subsection shall be repealed, and in lieu thereof the following provisions of this section shall have effect.

Amendment
of s. 19 of
Education
Act, 1921.
11 & 12
Geo. 5. c. 51.

(2) Where a dispute whether a school which is for the time being recognised as a public elementary school (in this section referred to as “the school under consideration”), is necessary or not falls to be determined

by the Board of Education under the said section nineteen, the Board shall not, if the number of scholars in average attendance at that school, as computed by the Board, is thirty or upwards, treat that school as unnecessary unless the Board are satisfied that accommodation for the scholars attending that school is available in other public elementary schools in the case of which the conditions hereinafter mentioned are satisfied.

(3) The conditions to be satisfied in the case of any such other public elementary school as aforesaid are:—

(a) where the school under consideration is a school provided by a local education authority, that the other school is a school provided by the same local education authority; and

(b) where the school under consideration is not a school provided by the local education authority, that the other school is a school which is of the same denominational character as the school under consideration, and is situate within the area of the local education authority in whose area the school under consideration is situate; and

(c) in either case, that the other school is reasonably accessible, regard being had to all the circumstances.

(4) If a teacher in a public elementary school appointed to his office before the commencement of this Act suffers by determination of his appointment or by diminution or loss of fees, salary or emoluments any direct pecuniary loss which he would not have suffered if this Act had not passed, he shall, if provision is not made by any other enactment for the time being in force for his compensation for that loss, be entitled to compensation therefor under this Act, and the provisions of the Eighth Schedule to the Local Government Act, 1929, shall, subject to the modifications set out in the Schedule to this Act, apply to the determination and payment of the compensation.

19 & 20
Geo. 5. c. 17.

Short title
and cita-
tion.

2.—(1) This Act may be cited as the Education (*Necessity of Schools*) Act, 1933.

(2) This Act and the Education Acts, 1921 to 1931, may be cited together as the Education Acts, 1921 to 1933.

SCHEDULE.

Section 1.

MODIFICATIONS SUBJECT TO WHICH EIGHTH SCHEDULE TO LOCAL GOVERNMENT ACT, 1929, IS APPLIED BY THIS ACT.

(1) References to the Local Government Act, 1929, shall be construed as references to this Act, references to a council shall be construed as references to a local education authority, and, except in paragraph 15, references to the Minister of Health shall be construed as references to the Board of Education :

(2) In sub-paragraph (e) of paragraph 1, the words "acting under this Act" shall be omitted; in paragraph 7, for the words "appointed day" there shall be substituted the words "commencement of the Education (Necessity of Schools) Act, 1933"; and, in paragraph 15, for the words "general expenses of the council" there shall be substituted the words "expenses of the local education authority under the Education Acts, 1921 to 1933."

CHAPTER 30.

An Act to amend and prolong the duration of the
Cotton Industry Act, 1923. [18th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subsection (1) of section two of the Cotton Industry Act, 1923, as amended by subsection (2) of section one of the Cotton Industry Act, 1928, shall, as from the eighteenth day of July, nineteen hundred and thirty-three, have effect as if for the words "a contribution at the rate of three pence" there were substituted the words "a contribution at the rate of one penny."

Amendment
and con-
tinuance of
13 & 14
Geo. 5. c. 22.
18 & 19
Geo. 5. c. 11.